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Opinion of the Court.

with the court, which asserted that the demanded material could not be furnished "without seriously hampering national security, flying safety and the development of highly technical and secret military equipment." The same affidavit offered to produce the three surviving crew members, without cost, for examination by the plaintiffs. The witnesses would be allowed to refresh their memories from any statement made by them to the Air Force, and authorized to testify as to all matters except those of a "classified nature."

The District Court ordered the Government to produce the documents in order that the court might determine whether they contained privileged matter. The Government declined, so the court entered an order, under Rule 37 (b)(2)(i),⁷ that the facts on the issue of negligence would be taken as established in plaintiffs' favor. After a hearing to determine damages, final judgment was entered for the plaintiffs. The Court of Appeals affirmed,⁸ both as to the showing of good cause for production of the documents, and as to the ultimate disposition of the case as a consequence of the Government's refusal to produce the documents.

⁷ "Rule 37. *Refusal to Make Discovery: Consequences.*

"(b) Failure to Comply With Order.

"(2) *Other Consequences.* If any party or an officer or managing agent of a party refuses to obey . . . an order made under Rule 34 to produce any document . . . , the court may make such orders in regard to the refusal as are just, and among others the following:

"(i) An order that the matters regarding which the questions were asked, or the character or description of the thing or land, or the contents of the paper, or the physical or mental condition of the party, or any other designated facts shall be taken to be established for the purposes of the action in accordance with the claim of the party obtaining the order;"

⁸ 192 F. 2d 987.

We have had broad propositions pressed upon us for decision. On behalf of the Government it has been urged that the executive department heads have power to withhold any documents in their custody from judicial view if they deem it to be in the public interest.⁹ Respondents have asserted that the executive's power to withhold documents was waived by the Tort Claims Act. Both positions have constitutional overtones which we find it unnecessary to pass upon, there being a narrower ground for decision. *Touhy v. Ragen*, 340 U. S. 462 (1951); *Rescue Army v. Municipal Court of Los Angeles*, 331 U. S. 549, 574-585 (1947).

The Tort Claims Act expressly makes the Federal Rules of Civil Procedure applicable to suits against the United States.¹⁰ The judgment in this case imposed liability upon the Government by operation of Rule 37, for refusal to produce documents under Rule 34. Since Rule 34 compels production only of matters "not privileged," the essential question is whether there was a valid claim of privilege under the Rule. We hold that there was, and that, therefore, the judgment below subjected the United States to liability on terms to which Congress did not consent by the Tort Claims Act.

We think it should be clear that the term "not privileged," as used in Rule 34, refers to "privileges" as that term is understood in the law of evidence. When the Secretary of the Air Force lodged his formal "Claim of Privilege," he attempted therein to invoke the privilege against revealing military secrets, a privilege which is well

⁹ While claim of executive power to suppress documents is based more immediately upon R. S. § 161 (see *supra*, note 4), the roots go much deeper. It is said that R. S. § 161 is only a legislative recognition of an inherent executive power which is protected in the constitutional system of separation of power.

¹⁰ 28 U. S. C. (1946 ed.) § 932; *United States v. Yellow Cab Co.*, 340 U. S. 543, 553 (1951).

established in the law of evidence.¹¹ The existence of the privilege is conceded by the court below,¹² and, indeed, by the most outspoken critics of governmental claims to privilege.¹³

Judicial experience with the privilege which protects military and state secrets has been limited in this country.¹⁴ English experience has been more extensive, but still relatively slight compared with other evidentiary privileges.¹⁵ Nevertheless, the principles which control the application of the privilege emerge quite clearly from the available precedents. The privilege belongs to the Government and must be asserted by it; it can neither be claimed¹⁶ nor waived¹⁷ by a private party. It is not to be lightly invoked.¹⁸ There must be a formal claim

¹¹ *Totten v. United States*, 92 U. S. 105, 107 (1875); *Firth Sterling Steel Co. v. Bethlehem Steel Co.*, 199 F. 353 (D. C. E. D. Pa. 1912); *Pollen v. Ford Instrument Co.*, 26 F. Supp. 583 (D. C. E. D. N. Y. 1939); *Cresmer v. United States*, 9 F. R. D. 203 (D. C. E. D. N. Y. 1949); see *Bank Line v. United States*, 68 F. Supp. 587 (D. C. S. D. N. Y. 1946), 163 F. 2d 133 (C. A. 2d Cir. 1947). 8 Wigmore on Evidence (3d ed.) § 2212a, p. 161, and § 2378 (g) (5), at pp. 785 *et seq.*; 1 Greenleaf on Evidence (16th ed.) §§ 250-251; Sanford, Evidentiary Privileges Against the Production of Data Within the Control of Executive Departments, 3 Vanderbilt L. Rev. 73, 74-75 (1949).

¹² 192 F. 2d 987, 996.

¹³ See Wigmore, *op. cit. supra*, note 11.

¹⁴ See cases cited *supra*, note 11.

¹⁵ Most of the English precedents are reviewed in the recent case of *Duncan v. Cammell, Laird & Co.*, [1942] A. C. 624.

¹⁶ *Firth Sterling Steel Co. v. Bethlehem Steel Co.*, 199 F. 353 (D. C. E. D. Pa. 1912).

¹⁷ *In re Grove*, 180 F. 62 (C. A. 3d Cir. 1910).

¹⁸ Marshall, C. J., in the *Aaron Burr* trial, I Robertson's Reports 186: "That there may be matter, the production of which the court would not require, is certain What ought to be done, under such circumstances, presents a delicate question, the discussion of which, it is hoped, will never be rendered necessary in this country."

of privilege, lodged by the head of the department which has control over the matter,¹⁹ after actual personal consideration by that officer.²⁰ The court itself must determine whether the circumstances are appropriate for the claim of privilege,²¹ and yet do so without forcing a disclosure of the very thing the privilege is designed to protect.²² The latter requirement is the only one which presents real difficulty. As to it, we find it helpful to draw upon judicial experience in dealing with an analogous privilege, the privilege against self-incrimination.

The privilege against self-incrimination presented the courts with a similar sort of problem. Too much judicial inquiry into the claim of privilege would force disclosure of the thing the privilege was meant to protect, while a complete abandonment of judicial control would lead to intolerable abuses. Indeed, in the earlier stages

¹⁹ *Firth* case, *supra*, note 16.

²⁰ "The essential matter is that the decision to object should be taken by the minister who is the political head of the department, and that he should have seen and considered the contents of the documents and himself have formed the view that on grounds of public interest they ought not to be produced" *Duncan v. Cammell, Laird & Co.*, [1942] A. C. 624, 638.

²¹ *Id.*, at p. 642:

"Although an objection validly taken to production, on the ground that this would be injurious to the public interest, is conclusive, it is important to remember that *the decision ruling out such documents is the decision of the judge*. . . . It is the judge who is in control of the trial, not the executive" (Emphasis supplied.)

²² *Id.*, at pp. 638-642; cf. the language of this Court in *Hoffman v. United States*, 341 U. S. 479, 486 (1951), speaking of the analogous hazard of probing too far in derogation of the claim of privilege against self-incrimination:

"However, if the witness, upon interposing his claim, were required to prove the hazard in the sense in which a claim is usually required to be established in court, *he would be compelled to surrender the very protection which the privilege is designed to guarantee*." (Emphasis supplied.)